

SETTLEMENT AGREEMENT BETWEEN
THE UNITED STATES OF AMERICA
AND
GALVESTON COUNTY, TEXAS
UNDER THE AMERICANS WITH DISABILITIES ACT

DJ# 204-74-343

I. BACKGROUND

A. SCOPE OF THE INVESTIGATION

The United States initiated this matter as a compliance review of Galveston County, Texas, under title II of the Americans with Disabilities Act of 1990 (ADA), 42 U.S.C. §§ 12131-12134, and the United States Department of Justice's implementing regulation, 28 C.F.R. Part 35. Because Galveston County receives financial assistance from the Department of Justice, the review was also conducted under the authority of section 504 of the Rehabilitation Act of 1973 (Section 504), 29 U.S.C. § 794, and the Department of Justice's implementing regulation, 28 C.F.R. Part 42, Subpart G.

The Disability Rights Section of the Department of Justice's Civil Rights Division conducted this review of Galveston County's compliance with the following title II requirements:

- to conduct a self-evaluation of its services, policies, and practices by July 26, 1992, and make modifications necessary to comply with the Department of Justice's title II regulation, 28 C.F.R. § 35.105;
- to notify applicants, participants, beneficiaries, and other interested people of their rights and Galveston County's obligations under title II and the Department of Justice's regulation, 28 C.F.R. § 35.106;

- to designate a responsible employee to coordinate its efforts to comply with and carry out Galveston County's ADA responsibilities, 28 C.F.R. § 35.107(a);
- to notify applicants, participants, beneficiaries, and other interested people of their rights and the County's obligations under title II and the Department of Justice's regulation, 28 C.F.R. § 35.106;
- to designate a responsible employee to coordinate its efforts to comply with and carry out the County's ADA responsibilities, 28 C.F.R. § 35.107(a);
- to establish a grievance procedure for resolving complaints of violations of title II, 28 C.F.R. § 35.107(b);
- to operate each program, service, or activity so that, when viewed in its entirety, it is readily accessible to and usable by individuals with disabilities, 28 C.F.R. §§ 35.149-.150, by:
- delivering services, programs, or activities in alternate ways, including, for example, redesign of equipment, reassignment of services, assignment of aides, home visits, or other methods of compliance and/or;
- making physical changes to buildings (required to have been made by January 26, 1995), in accordance with the Department of Justice's title II regulation, 28 C.F.R. §§ 35.150-.151, and the 1991 ADA Standards for Accessible Design (1991 ADA Standards), 28 C.F.R. Part 36, App. D (2011) or the Uniform Federal Accessibility Standards (UFAS), 41 C.F.R. § 101-19.6, App. A, and the 2010 ADA Standards for Accessible Design (2010 Standards), 28 C.F.R. § 35.104;^{[1](#)}
- to ensure that facilities for which construction or alteration was begun after January 26, 1992, are readily accessible to and usable by people with disabilities, in accordance with 1) the Department of Justice's title II regulation and 2) the 1991 ADA Standards or UFAS, or the 2010 ADA Standards, as applicable, 28 C.F.R. § 35.151;
- to ensure that communications with people with disabilities, including applicants, participants, and members of the public, are as effective as communications with others, including

furnishing auxiliary aids and services when necessary, 28 C.F.R. § 35.160;

- to provide direct access via TTY (text telephone) or computer-to-telephone emergency services, including 911 services, 28 C.F.R. § 35.162;
- to provide information for interested people with disabilities concerning the existence and location of Galveston County's accessible services, activities, and facilities, 28 C.F.R. § 35.163(a); and
- to provide signage at all inaccessible entrances to any facility, directing users to an accessible entrance or to information about accessible facilities, 28 C.F.R. § 35.163(b).

The United States reviewed compliance with the ADA's new construction and alterations requirements at the following facilities constructed or altered after January 26, 1992:

- Animal Resource Center
- Jack Brooks Park
- Justice Center – Court Building
- Bayshore Spillway Park Pavilion
- Crystal Beach Annex
- Jerry J. Esmond Juvenile Justice Center
- Galveston County Jail
- Emergency Management Facility
- Mid County Annex
- Justice Center Law Enforcement Building
- County Courthouse
- Paul Hopkins Community Park

- West County Annex Building
- Ray Holbrook Park

The program access review covered those of Galveston County's programs, services, and activities that operate in the following facilities that were constructed prior to January 26, 1992:

- Justice of the Peace Offices/ Bayshore Courthouse Annex
- Texas City Annex
- Fort Travis Park
- Dickinson Community Center
- Runge Park Community Center
- Popovich Building
- North County Annex
- Bacliff Community Center

The Department conducted a program access review of the following polling places:

- Camp Good News
- Joe Faggard Community Center
- Calvary Baptist Church
- North Side Baptist Church
- La Marque City Hall

This review was limited to the areas of the facilities used by the voting public: parking, the route from the parking area to the area used for voting, and the area used for voting.

The United States reviewed Galveston County's emergency management and disaster prevention policies to evaluate whether people with disabilities have an equal opportunity to utilize these programs.

The United States reviewed Galveston County's Sheriff Department's policies and procedures regarding providing effective communication to people who are deaf or hard of hearing.

B. JURISDICTION

1. The ADA applies to Galveston County because it is a “public entity” as defined by title II. 42 U.S.C. § 12131(1).
2. The United States is authorized under 28 C.F.R. Part 35, Subpart F, to determine the compliance of Galveston County with title II of the ADA and the Department of Justice's title II implementing regulation, to issue findings, and, where appropriate, to negotiate and secure voluntary compliance agreements. Furthermore, the Attorney General is authorized, under 42 U.S.C. § 12133, to bring a civil action enforcing title II of the ADA.
3. The United States is authorized under 28 C.F.R. Part 42, Subpart G, to determine Galveston County's compliance with Section 504, to issue findings, and, where appropriate, to negotiate and secure voluntary compliance agreements. Furthermore, the Attorney General is authorized, under 29 U.S.C. § 794 and 28 C.F.R. §§ 42.530 and 42.108-.110, to suspend or terminate financial assistance to Galveston County provided by the Department of Justice should the United States fail to secure voluntary compliance pursuant to Subpart G or should the United States bring a civil suit to enforce the rights of the United States under applicable federal, state, or local law. Galveston County expressly denies that it has violated Title II of the ADA, and, by entering into this Agreement, does not admit any wrongdoing.
4. The parties to this Agreement are the United States of America and Galveston County, Texas.
5. Based on its review of Galveston County's programs, services, activities, and facilities, the United States has concluded that qualified individuals with disabilities may be, by reason of such disabilities, excluded from participation in or are denied the benefits of certain of

Galveston County's programs, services, or activities in violation of the ADA or Section 504.

The agreed upon remedial actions, below, are intended to remedy those violations.

6. In order to avoid the burdens and expenses of a further investigation and possible litigation, the parties enter into this Agreement.

7. In consideration of, and consistent with, the terms of this Agreement, the Attorney General agrees to refrain from filing a civil suit in this matter regarding paragraphs 9 through 47, except as provided in the section entitled "Implementation and Enforcement."

II. ACTIONS TAKEN BY GALVESTON COUNTY

8. Galveston County represents that it has taken actions to comply with the ADA and Section 504, including but not limited to the following:

- a. Galveston County has a designated ADA Coordinator for the general public and a designated ADA Coordinator for the County Jail. Grievances are filed with the ADA Coordinator who then conducts an investigation, as needed. The ADA Coordinator is responsible for issuing a written determination following the evaluation of evidence presented in the complaint and/or the investigation.
- b. Galveston County hired a consultant to perform a self-evaluation on December 4, 1998.
- c. The County performed another self-assessment of its polling places in August and September of 2011 to review all of Galveston County's voting locations. Some of these locations were reviewed by Galveston County Clerk's Election Division and the Disability Rights Texas organization.
- d. Galveston County uses Hart Intercivic Electronic Voting Equipment which offers accessible features for wheelchair users, blind and deaf voters, including a Braille absentee ballot. Curb side voting is also available. County employees are trained and available to assist citizens with disabilities on-site.
- e. The Galveston County Commissioners Court adopted "The County of Galveston Americans With Disabilities Act of 1990 Transition Plan" on March 7, 1994. To

prepare for the Plan, Galveston County systematically surveyed its facilities in response to ADA legislation.

- f. Galveston County's Veteran's Services employees are available to travel to a disabled veteran's home and process applications for benefits and claims.
- g. Elected members of Galveston County Commissioners Court are available to travel and in the past have traveled to disabled constituents' homes to address concerns about County policies or services.
- h. Galveston County has an Emergency Operations Plan and instituted a "Cooperative Evacuation Plan" for citizens with medical needs; and a contracted service to provide assistance to evacuated citizens with medical needs.
- i. Galveston County Sheriff's emergency communications center can process sent and received telephone relay calls. The County jail operates a telephone relay service for hearing impaired inmates.
- j. Galveston County consults with the Texas Workforce Commission in creating its employment policy and procedure which governs the application process, job advertisements, recruiting, and hiring.

III. REMEDIAL ACTION

A. NOTIFICATION

- 9. Within two (2) months of the effective date of this Agreement, Galveston County will adopt the attached Notice under the ADA, [Attachment A](#) (Notice); distribute it to all its agency heads; publish the Notice in a local newspaper of general circulation serving Galveston County; post the Notice on its Internet Home Page; and post the Notice in conspicuous locations in its public buildings. It will refresh each posted Notice, and update the contact information contained on each Notice, as necessary, during the term of this Agreement. Galveston County will provide the Notice to any person upon request.

10. Within three (3) months of the effective date of this Agreement, and annually thereafter, Galveston will implement and send the United States its written procedures to inform interested people with disabilities of the existence and location of Galveston's accessible programs, services, and activities.

B. INDEPENDENT LICENSED ARCHITECT

11. Within three (3) months of the effective date of this Agreement, Galveston County will retain either an Independent Licensed Architect or an independent Registered Accessibility Specialist (ILA), approved by the United States, which approval shall not be unreasonably withheld, who is knowledgeable about the architectural accessibility requirements of the ADA and Section 504. The ILA must act independently to review and comment on designs proposed by architectural and construction professionals acting on behalf of Galveston County and to certify that alterations, additions, or modifications made by Galveston County during the term of and as required by this Agreement comply with the applicable standard pursuant to 28 C.F.R. § 35.151(c) and the Appendix to 28 C.F.R. § 35.151(c) and applicable Texas laws. As required by Texas law concerning access to facilities by disabled persons, the ILA shall review and comment on the proposed design of remedial projects, shall certify that proposed design for the project satisfies applicable state and federal statutes and regulations and shall certify that the as-built project satisfies all applicable state and federal statutes and regulations. Galveston County will bear all costs and expenses of retaining and utilizing the ILA, including the costs and expenses of any consultants and staff. Galveston County will compensate this ILA without regard to the outcome.
12. In issuing certifications pursuant to this Agreement, the ILA will impartially prepare reports with photographs identifying that the violation has been remediated and will use the certification form at [Attachment O](#). The ILA will be considered a neutral inspector for purposes of issuing certifications of compliance and will be reasonably available to the United States to discuss findings in the reports, photographs, and certifications. The United States may also, in its discretion, provide technical assistance to the ILA throughout the term of this Agreement, with notice to Galveston County. Upon request by the United States, Galveston

County will provide prior notice to the United States of inspections by the ILA to allow representatives of the United States to be present.

13. Galveston County will submit ILA certifications along with its reporting requirements as set forth in this Agreement.

C. GENERAL EFFECTIVE COMMUNICATION PROVISIONS

14. Within five (5) months of the effective date of this Agreement, Galveston County will identify sources of qualified sign language and oral interpreters, qualified readers, real-time transcription services, and vendors able to put documents in Braille. Within this time Galveston County will implement and report to the United States its written procedures, with time frames, for fulfilling requests for sign language or oral interpreters, qualified readers, real-time transcription services, and documents in alternate formats, including Braille, large print, cassette tapes, and accessible electronic format (*e.g.*, HTML).

D. LAW ENFORCEMENT AND EFFECTIVE COMMUNICATION

15. Within three (3) months of the effective date of this Agreement, Galveston County will implement Galveston County's Sheriff's Office's Policy Statement on Effective Communication with People Who are Deaf or Hard of Hearing, [Attachment C](#), and distribute to all sheriff officers the Guide for Law Enforcement Officers When in Contact with People Who are Deaf or Hard of Hearing, [Attachment D](#).
16. Within five (5) months of the effective date of this Agreement, Galveston County will hire or contract with local qualified oral and sign language interpreters to be available twenty-four hours every day to its Sheriff Office.
17. Where telephone calls are time-limited, Galveston County will adopt policies permitting a longer period of time for individuals using a TTY, videophone, or relay service due to the slower nature of these communications as compared to voice communications. If any person who is deaf, hard of hearing, or who has a speech impairment prefers a different method of

communication, such as a captioned telephone or computer, Galveston County will make reasonable efforts to provide the communication device requested.

E. POLLING PLACES

18. Some Galveston County polling places may be owned or operated by other public entities subject to title II or by public accommodations subject to title III and therefore they must provide program access or remove barriers to accessibility under the ADA. This Agreement does not limit future enforcement action against the owners or operators of these polling places.
19. Before designating any new polling place, Galveston County will survey the polling place to determine whether it has barriers to access by people with disabilities in the parking, exterior route to the entrance, entrance, interior route to the voting area, or voting area. If Galveston County finds any barriers, Galveston County will not use the polling place until all barriers have been remedied on election days.
20. The United States surveyed some of Galveston County's polling places.
21. Barriers to access at surveyed polling places not owned by Galveston County are listed in [Attachment E](#). Galveston County has provided the United States with evidence showing that all polling locations utilized by Galveston County to conduct elections, whether owned by Galveston County or not, are accessible by persons with disabilities on election days.
22. Galveston County will continue to utilize only polling locations for elections conducted by Galveston County that are accessible on election day by persons with disabilities.
23. This Agreement does not modify, alter, or change Galveston County's obligations under the National Voter Registration Act of 1993, 42 U.S.C. § 1973gg-5(a), (b).
24. Within three (3) months of the effective date of this Agreement, Galveston County will make all voter registration materials available in one or more alternate formats, including Braille, large print, audio tape, and accessible electronic format (*e.g.*, HTML).

25. Within the month prior to the next election and annually thereafter during the term of this Agreement, Galveston County will train poll workers on the rights of people with disabilities and the practical aspects of assuring those rights. The training will cover, at a minimum, the need to maintain the physical accessibility of polling locations, how to assist people with disabilities, as necessary, and how to operate any non-standard voting equipment, including accessible voting systems, or accessible features of standard equipment. This provision does not modify, alter, or change Galveston County's obligations under the Help America Vote Act, 42 U.S.C. § 15301.

F. EMERGENCY MANAGEMENT PROCEDURES AND POLICIES

26. Galveston County's Emergency Operations Plan (EOP) must comply with the ADA.

Galveston County will use Chapter 7 of the Department of Justice's *ADA Best Practices Tool Kit for State and Local Government (ADA Tool Kit)* to address ADA obligations of emergency management, including planning, preparedness, evacuation, shelters, medical and social services, lodging and housing programs, recovery, and rebuilding.

27. Within five (5) months of the effective date of this Agreement, Galveston County will incorporate the provisions of Chapter 7 of the *ADA Tool Kit* into its EOP and provide a copy (including supporting documents) to the United States.

28. Galveston County's EOP will include the following:

- a. Procedures to solicit, receive, and use input from people with a variety of disabilities on its emergency management plan (preparation, notification, response, and clean-up);
- b. Community evacuation plans to enable people who have mobility disabilities, are blind or have low vision, are deaf or hard of hearing, have cognitive disabilities, mental illness, or other disabilities to safely self-evacuate or be evacuated by others.
- c. If its emergency warning system uses sirens or other audible alerts, then procedures to effectively inform people who are deaf or hard of hearing of an impending disaster. Galveston County does not currently have an emergency warning system that uses sirens or other audible alerts. When necessary, Galveston County distributes

information concerning emergency or disaster situations (1) by audio messages, email, text messages, and TTY messages through the Blackboard Connect system; (2) by press releases distributed through the news media; (3) through billboards located on major highways within the County, and (4) through social media.

- d. A requirement that emergency shelters have a back-up generator and a way to keep medications refrigerated (such as a refrigerator or a cooler with ice). Access to back-up power and refrigeration at such shelters will be made available to people whose disabilities require access to electricity and refrigeration, for example, for using life-sustaining medical devices, providing power to motorized wheelchairs, and preserving certain medications, such as insulin, that require refrigeration. The written procedures will include a plan for notifying people of the location of such shelters. At the present time, Galveston County does not own or operate any emergency shelters.
- e. Procedures ensuring that people who use service animals are not separated from their service animals when sheltering during an emergency, even if pets are normally prohibited in shelters. The procedures will not segregate people who use service animals from others but may take into account the potential presence of people who, for safety or health reasons, should not be in contact with certain types of animals.
- f. Plans for providing equivalent opportunities for accessible post-emergency temporary housing to people with disabilities. Galveston County will ensure that information it makes available regarding temporary housing includes information on accessible housing (such as accessible hotel rooms within the community or in nearby communities) that could be used if people with disabilities cannot immediately return home after a disaster if, for instance, necessary accessible features such as ramps or electrical systems have been compromised.

G. PHYSICAL CHANGES TO EMERGENCY SHELTERS

- 29. Galveston County has the ultimate responsibility for providing shelter and mass care due to emergency situations. At the present time, Galveston County does not have any permanent County facilities designated for shelters and/or mass care facilities. Some Galveston County

emergency shelters may be owned or operated by other public entities subject to title II or by public accommodations subject to title III and therefore they must provide program access or remove barriers to accessibility under the ADA. This Agreement does not limit future enforcement action against the owners or operators of these emergency shelters.

30. Within three (3) months of the effective date of this Agreement and until all emergency shelters are accessible as confirmed by the ILA, Galveston County will identify and widely publicize to the public and to people with disabilities the most accessible emergency shelters.

H. WEB-BASED SERVICES AND PROGRAMS

31. Within two (2) months of the effective date of this Agreement, Galveston County will:

- a. Designate an employee as the web accessibility coordinator for Galveston County who will be responsible for coordinating Galveston County's compliance with the requirements of Section H of this Agreement. The web accessibility coordinator shall have experience with the requirements of title II of the ADA, the Web Content Accessibility Guidelines (WCAG) version 2.0, and website accessibility generally; and
- b. Retain an independent consultant, approved by the United States, which approval shall not be unreasonably withheld, who is knowledgeable about accessible website development, Title II of the ADA, and WCAG 2.0 to evaluate Galveston County's website and any proposed online services for compliance with the ADA and, at minimum, WCAG 2.0 Level A and Level AA Success Criteria and other Conformance Requirements (WCAG 2.0 AA), and who shall be responsible for the annual website accessibility evaluation. Galveston County will bear all costs and expenses of retaining and utilizing this independent consultant, including the costs and expenses of any staff. Galveston County will compensate this independent consultant without regard to the outcome.
- c. Retain an independent consultant, approved by the United States, who is knowledgeable about accessible website development, title II of the ADA, and WCAG 2.0 to evaluate Galveston County's website and any proposed online services for compliance with the

ADA and, at minimum, WCAG 2.0 Level A and Level AA Success Criteria and other Conformance Requirements (WCAG 2.0 AA), and who shall be responsible for the annual website accessibility evaluation. Galveston County will bear all costs and expenses of retaining and utilizing this independent consultant, including the costs and expenses of any staff. Galveston County will compensate this independent consultant without regard to the outcome.

32. Within three (3) months of the effective date of this Agreement, and annually thereafter, Galveston County will:

- a. Adopt, implement, and post online a policy that its web pages will comply with WCAG 2.0 AA, published by the World Wide Web Consortium (W3C), Web Accessibility Initiative (WAI), available at www.w3.org/TR/WCAG.
- b. Distribute the policy to all employees and contractors who design, develop, maintain, or otherwise have responsibility for its websites, or provide website content, technical support, or customer service;
- c. Provide training to website content personnel on how to design, develop and maintain all web content and services to be accessible by persons with disabilities with, at minimum, WCAG 2.0 AA, and conform with title II of the ADA and the terms of this Agreement;
- d. Incorporate provisions ensuring that all of Galveston County's web pages comply with WCAG 2.0 AA into the performance evaluations of the web accessibility coordinator and all employees and contractors who design, develop, maintain, or otherwise have responsibility for its websites, or provide website content, technical support, or customer service;
- e. Assess all Galveston County owned existing web content and online services for conformance with, at minimum, WCAG 2.0 AA, by: (1) performing automated accessibility tests of its website and all online services, using an automated tool approved by the United States, to identify any accessibility barriers and (2) in

conjunction with the independent consultant, engage persons with disabilities, including, at a minimum, individuals who are blind, deaf and have physical disabilities (such as those limiting the ability to use a mouse), to test its pages for ease of use and accessibility barriers. Galveston County will be responsible for reasonably compensating these persons with disabilities.

- f. Provide a notice, prominently and directly linked from its homepage, instructing visitors to its websites on how to request accessible information. The link shall provide at least two methods to request accessible information, including an accessible form to submit feedback, an email address, or a toll-free phone number (with TTY) to contact personnel knowledgeable about the accessibility of the website; and
- g. Provide a notice, prominently and directly linked from its homepage, soliciting feedback from visitors to its websites on how to improve website accessibility. The link shall provide at least two methods to provide feedback, including an accessible form to submit feedback, an email address, or a toll-free phone number (with TTY) to contact personnel knowledgeable about the accessibility of the website.

33. Within five (5) months of the effective date of this Agreement, Galveston County will:

- a. Ensure that its websites and all online services, including those websites or online services provided by third parties upon which Galveston County relies to provide services or content, comply with, at minimum, WCAG 2.0 AA; and
- b. Assess all proposed online services to be offered by Galveston County before they are made available to the public for conformance with, at minimum, WCAG 2.0 AA, by:
 - (1) performing automated accessibility tests, using an automated tool approved by the United States, to identify any accessibility barriers; and (2) in conjunction with the independent consultant, engage persons with disabilities including, at a minimum, individuals who are blind, deaf and have physical disabilities (such as those limiting the ability to use a mouse), to test its pages for ease of use and accessibility barriers.Galveston County will be responsible for reasonably compensating these persons with disabilities.

I. NEW CONSTRUCTION, ALTERATIONS AND PHYSICAL CHANGES TO FACILITIES

34. Following the effective date of this Agreement, any construction or alterations to Galveston County buildings and facilities by it or on its behalf will fully comply with the requirements of 28 C.F.R. § 35.151, including applicable architectural standards.
35. The parts of a Galveston County facility that do not comply with the 2010 ADA Standards (or the 1991 ADA Standards, as applicable), as listed in Attachments [I](#), [J](#), and [L](#), may prevent people with disabilities from fully and equally enjoying Galveston County's services, programs, or activities.
36. All architectural changes by Galveston County or on its behalf made on or after March 15, 2012, must comply with the 2010 ADA Standards.
37. In the event that Galveston County has already undertaken an alteration, addition, or other modification to any element identified in Attachments [I](#) and [J](#) or otherwise after January 26, 1992, and prior to the Effective Date of this Agreement, Galveston County will submit, within nine (9) months, a written report to the ILA and the United States pursuant to paragraph 58 below summarizing the actions taken and providing evidence establishing each individual element's compliance with the applicable architectural standard as permitted by 28 C.F.R. § 35.151(c) and its Appendix, copied below:

Date of Construction or Alteration	Applicable Standards
Before September 15, 2010	1991 ADA Standards or UFAS

On or after September 15, 2010, and before March 15, 2012	1991 ADA Standards, UFAS, or 2010 ADA Standards
On or after March 15, 2012	2010 ADA Standards

38. Within six (6) months of the effective date of this Agreement, Galveston County will install signs identifying the accessible entrances that comply with 28 C.F.R. § 35.163(b), after having an ILA survey all facilities that are the subject of this Agreement for the purpose of identifying those that have multiple entrances not all of which are accessible.
39. Newly Constructed Facilities: Galveston County will take the actions listed in Attachments [I](#) and [M](#) to make the newly constructed parts of Galveston County facilities for which construction was commenced after January 26, 1992, readily accessible to and usable by people with disabilities.
40. Altered Facilities: Galveston County will take the actions listed in Attachments [J](#) and [M](#) to make the altered parts of Galveston County facilities for which alterations commenced after January 26, 1992, readily accessible to and usable by people with disabilities.
41. Program Access in Existing Facilities: Galveston County will take the actions listed in Attachments K and [M](#) to make each of Galveston County's programs, services, and activities operating at a facility that is the subject of this Agreement, when viewed in its entirety, readily accessible to and usable by people with disabilities.
42. Facilities and Programs that the United States Did Not Survey: Galveston County will review compliance with the requirements of title II of the ADA for those Galveston County facilities and programs that the United States did not survey or review. The ILA will survey all Galveston County's facilities for compliance with title II of the ADA that the United States did not survey. Within sixteen (16) months of the effective date of this Agreement, Galveston County will submit to the United States a detailed report from the ILA listing the access issues

identified during the ILA's review together with the corrective actions and completion dates proposed to resolve such issues. The proposed completion dates may be no later than six (6) months prior to the termination of this Agreement. The survey conducted by the ILA, the access issues identified, and the corrective actions and completion dates proposed will be consistent with the requirements of title II of the ADA; the review of Galveston County facilities and programs conducted by the United States for purposes of this Agreement; and the access issues, corrective actions, and completion dates reflected in Attachments [I](#), [J](#), [K](#), and [M](#).

J. PROGRAM MODIFICATIONS

43. Access to Programs Housed in Others' Facilities: In order to ensure that Galveston County's programs, services, and activities that are the subject of this Agreement and that are operated by Galveston County at facilities owned or controlled by other entities, when viewed in their entirety, are readily accessible to and usable by people with mobility impairments, Galveston County will take the actions listed in Attachments [L](#) and [M](#).

IV. MISCELLANEOUS PROVISIONS

44. Except as otherwise specified in this Agreement, nine (9) months after the effective date of this Agreement and annually thereafter until it expires, Galveston County will submit written reports to the United States summarizing its actions pursuant to this Agreement. Reports will include reports with certifications from the ILA, photographs showing measurements, architectural plans, notices published in the newspaper, and copies of adopted policies, among other things.
45. Throughout the term of this Agreement, consistent with 28 C.F.R. § 35.133(a), Galveston County will maintain the accessibility of its programs, activities, services, facilities, and equipment, including routinely testing accessibility equipment and routinely auditing the accessibility of its programs and facilities. This provision, however, does not prohibit isolated or temporary interruptions in service or access due to maintenance or repairs. 28 C.F.R. § 35.133(b).

46. Within six (6) months of the effective date of this Agreement, Galveston County will submit for pre-approval by the United States proposed training programs, prepared by Galveston County's Human Resources Department and tailored to the needs of each County department and the office of each elected official in Galveston County, on the requirements of the ADA and appropriate ways of serving people with disabilities. The submission will include a description of the training, the agenda, any handouts, and the name, title, and address of the trainer.
47. Within one (1) year of the effective date of this Agreement and annually thereafter, after approval of the training programs by the United States, all Galveston County employees of County Departments who have direct contact with members of the public will be trained on the requirements of the ADA and appropriate ways of serving people with disabilities under the relevant training program. Galveston County will train, using the relevant training program, the employees of each elected official in Galveston County who adopts the training program developed by the County. Within thirty (30) days after each training Galveston County will submit to the United States the list of employees trained.

V. IMPLEMENTATION AND ENFORCEMENT

48. Galveston County may seek to modify this Agreement because of changed conditions making performance impossible or impractical by notifying the United States in writing, setting forth the modification and the facts to support it. Until the United States agrees to the modification in writing, no modification will take effect. The United States' agreement will not be unreasonably withheld.
49. The United States may review compliance with this Agreement at any time. Galveston County will cooperate with the United States. If the United States believes that Galveston County has failed to comply with this Agreement, then the United States will notify Galveston County in writing. If, after 30 days of providing Galveston County with written notice of non-compliance, the United States determines that Galveston County has failed to come into compliance, the United States may institute a civil action in federal district court to enforce

the terms of this Agreement and may take appropriate steps to enforce title II and section 504 of the Rehabilitation Act.

50. It is a violation of this Agreement for Galveston County to fail to comply in a timely manner with any of the requirements of this Agreement.

51. Failure by the United States to enforce any provision of this Agreement is not a waiver of the United States' right to enforce any provisions of this Agreement.

52. This Agreement is a public document, approved by the Commissioners Court of Galveston County at a properly noticed open meeting of that body and filed of record with the County Clerk of Galveston County. Galveston County will provide a copy of this Agreement to any person, upon request. A copy of this Agreement may also be obtained from the records of the County Clerk. This Agreement (including its Attachments) is the entire agreement between the parties on the matters raised herein, and no other statement, promise, or agreement, either written or oral, made by either party will be enforceable. This Agreement does not remedy any other potential violations of the ADA or other federal law. This Agreement does not relieve Galveston County of its continuing obligation to comply with all aspects of the ADA and Section 504.

53. This Agreement will remain in effect for three (3) years after the effective date of this Agreement.

54. The person signing this Agreement for Galveston County has been authorized to do so by Commissioners Court.

55. The effective date of this Agreement is the date of the last signature below.

For Galveston County:

For the United States:

VANITA GUPTA

Principal Deputy Attorney General for Civil Rights

EVE L. HILL

Deputy Assistant Attorney General

By: /s/ Mark A. Henry
Mark A. Henry, County Judge

REBECCA B. BOND, Chief
KATHLEEN P. WOLFE, Special Litigation
Counsel
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¹ Section 35.104 defines the 2010 ADA Standards as the requirements set forth in
appendices B and D to 36 C.F.R. part 1191 and the requirements contained in subpart D
of 28 C.F.R. part 36.
